



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

[SB 1099](#): NOW: defamation; elements

NGUYEN FLOOR AMENDMENT

1. Stipulates that a statement that is published on the internet is considered republished each day that the statement remains on the internet.

NGUYEN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1099
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 12, chapter 6, article 6, Arizona Revised
3 Statutes, is amended by adding section 12-651.01, to read:

4 12-651.01. Defamation; statute of limitations; definitions

5 A. A PERSON COMMITS DEFAMATION IF THE PLAINTIFF IS A PRIVATE
6 FIGURE, THE MATTER IS OF PRIVATE CONCERN AND THE PLAINTIFF SHOWS ALL OF
7 THE FOLLOWING EXIST:

8 1. THE PERSON PUBLISHES A STATEMENT THAT IS:

9 (a) PROVABLE AS FALSE.

10 (b) REASONABLY PERCEIVED AS STATING ACTUAL FACTS ABOUT THE
11 PLAINTIFF RATHER THAN IMAGINATIVE EXPRESSION OR RHETORICAL HYPERBOLE.

12 2. THE PERSON MAKES THE STATEMENT WITH KNOWLEDGE OF ITS FALSITY,
13 ACTS WITH RECKLESS DISREGARD OF THE STATEMENT'S FALSITY OR NEGLIGENTLY
14 FAILS TO ASCERTAIN THE STATEMENT'S FALSITY.

15 3. THE STATEMENT, WHEN EXAMINED WITHIN THE FULL CONTEXT IN WHICH IT
16 WAS MADE, INJURES THE PLAINTIFF'S REPUTATION BY DOING ANY OF THE
17 FOLLOWING:

18 (a) IDENTIFYING THE PLAINTIFF BY NAME.

19 (b) INCLUDING A DESCRIPTION OF OR REFERENCE TO THE PLAINTIFF SO
20 THAT THOSE WHO HEAR OR READ THE STATEMENT REASONABLY UNDERSTAND THE
21 PLAINTIFF TO BE THE SUBJECT OF THE STATEMENT.

22 (c) IMPLYING A CLEARLY DEFAMATORY MEANING THAT, WHEN EXAMINED
23 WITHIN ITS CONTEXT, CAUSES THE AVERAGE PERSON TO PERCEIVE A DEFAMATORY
24 MESSAGE.

25 B. A PERSON COMMITS DEFAMATION IF THE PLAINTIFF IS A PRIVATE
26 FIGURE, THE MATTER IS OF PUBLIC CONCERN AND THE PLAINTIFF SHOWS ALL OF THE
27 FOLLOWING EXIST:

1 1. THE PERSON PUBLISHES A STATEMENT THAT THE PERSON KNOWS TO BE
2 FALSE, ACTS WITH RECKLESS DISREGARD OF THE STATEMENT'S FALSITY OR
3 NEGLIGENTLY FAILS TO ASCERTAIN THE STATEMENT'S FALSITY.

4 2. THE PERSON PUBLISHES A STATEMENT THAT, WHEN EXAMINED WITHIN THE
5 FULL CONTEXT IN WHICH IT WAS MADE, INJURES THE PLAINTIFF'S REPUTATION BY
6 DOING ANY OF THE FOLLOWING:

7 (a) IDENTIFYING THE PLAINTIFF BY NAME.

8 (b) INCLUDING A DESCRIPTION OF OR REFERENCE TO THE PLAINTIFF SO
9 THAT THOSE WHO HEAR OR READ THE STATEMENT REASONABLY UNDERSTAND THE
10 PLAINTIFF TO BE THE SUBJECT OF THE STATEMENT.

11 (c) IMPLYING A CLEARLY DEFAMATORY MEANING THAT, WHEN EXAMINED
12 WITHIN ITS CONTEXT, CAUSES THE AVERAGE PERSON TO PERCEIVE A DEFAMATORY
13 MESSAGE.

14 3. THE PUBLISHED STATEMENT IS BOTH:

15 (a) PROVABLE AS FALSE.

16 (b) REASONABLY PERCEIVED AS STATING ACTUAL FACTS ABOUT THE
17 PLAINTIFF RATHER THAN IMAGINATIVE EXPRESSION OR RHETORICAL HYPERBOLE.

18 C. A PERSON COMMITS DEFAMATION IF THE PLAINTIFF IS A PUBLIC FIGURE,
19 THE MATTER IS OF PUBLIC CONCERN AND THE PLAINTIFF SHOWS ALL OF THE
20 FOLLOWING EXIST:

21 1. THE PERSON PUBLISHES A STATEMENT THAT THE PERSON KNOWS TO BE
22 FALSE OR ACTS WITH RECKLESS DISREGARD OF THE STATEMENT'S TRUTH.

23 2. THE PERSON PUBLISHES A STATEMENT THAT, WHEN EXAMINED WITHIN THE
24 FULL CONTEXT IN WHICH IT WAS MADE, INJURES THE PLAINTIFF'S REPUTATION BY:

25 (a) IDENTIFYING THE PLAINTIFF BY NAME.

26 (b) INCLUDING A DESCRIPTION OF OR REFERENCE TO THE PLAINTIFF SO
27 THAT THOSE WHO HEAR OR READ THE STATEMENT REASONABLY UNDERSTAND THE
28 PLAINTIFF TO BE THE SUBJECT OF THE STATEMENT.

29 (c) IMPLYING A CLEARLY DEFAMATORY MEANING THAT, WHEN EXAMINED
30 WITHIN ITS CONTEXT, CAUSES THE AVERAGE PERSON TO PERCEIVE A DEFAMATORY
31 MESSAGE.

32 3. THE STATEMENT IS BOTH:

33 (a) PROVABLE AS FALSE.

34 (b) REASONABLY PERCEIVED AS STATING ACTUAL FACTS ABOUT THE
35 PLAINTIFF RATHER THAN IMAGINATIVE EXPRESSION OR RHETORICAL HYPERBOLE.

36 D. A DEFAMATION ACTION UNDER THIS SECTION INVOLVING A DEFAMATORY
37 STATEMENT THAT IS PUBLISHED ON THE INTERNET SHALL BE COMMENCED WITHIN ONE
38 YEAR FROM THE DATE THE PERSON REMOVES THE DEFAMATORY STATEMENT FROM THE
39 INTERNET SITE OR INTERNET-BASED PLATFORM WHERE THE PERSON ORIGINALLY
40 PUBLISHED THE DEFAMATORY STATEMENT. [A STATEMENT THAT IS PUBLISHED ON THE
41 INTERNET IS CONSIDERED REPUBLISHED EACH DAY THAT THE STATEMENT REMAINS ON
42 THE INTERNET.]

43 E. FOR THE PURPOSES OF THIS SUBSECTION:

44 1. "INTERNET" HAS THE SAME MEANING PRESCRIBED IN SECTION 18-501.

45 2. "INTERNET-BASED PLATFORM" INCLUDES:

46 (a) A DIGITAL SERVICE THAT FACILITATES USER INTERACTION, CONTENT
47 CREATION OR INFORMATION EXCHANGE.

House Amendments to S.B. 1099

- 1 (b) A SOCIAL MEDIA SERVICE.
- 2 (c) A CONTENT SHARING SERVICE.
- 3 (d) A CLOUD BASED SERVICE.

- 4 Enroll and engross to conform
- 5 Amend title to conform

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